

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
September 14, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2020-01166856 Nilchian vs. Organic Pastures Dairy Company LLC	The tentative ruling is to continue the Final Report Hearing to November 23, 2026 at 1:30 p.m. to confirm that the administrator has distributed the attorney's fees and costs and administrator fees, that the amount of the uncashed checks after the check-cashing deadline has been delivered to the cy pres recipient, that the Administrator's work is complete, and that the court's file

		thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. The court notes that because a portion of the Judgment is being paid to a nonparty, National Consumer Law Center, plaintiff must submit an Amended Judgment that complies with CCP §§384(b) and 384.5, and Gov. Code §68520. Specifically, the Amended Judgment must state how much money is being paid to the nonparty, including any interest that accrued on the funds, and, if known, the purpose of the distribution to the nonparty and how it plans to expend the funds. Plaintiff is ordered to give notice of this ruling to Defendant.
2	30-2021-01204377 Sgontz vs. Crossmark, Inc.	The tentative ruling is to continue the Final Report Hearing to November 23, 2026 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiffs are ordered to give notice of this ruling to Defendant.
3	30-2021-01207569 Ascencio vs. Toshiba America Business Solutions, Inc.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Plaintiff has shown that the Administrator's work is complete, the court's file may now be closed. Plaintiff is ordered to give notice of this ruling to Defendant.
4	30-2023-01354711 Huber vs. Evolve Dental Technologies, Inc.	The tentative ruling is to continue the Final Report Hearing to July 26, 2027 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date.

		Plaintiff is ordered to give notice of this ruling to Defendant.
5	30-2018-00983513 Palacios vs. Weldek Inc.	Plaintiff Faustino Sanchez Palacios' ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. The court concludes that the \$894,000.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$297,970.20 to plaintiff's counsel for plaintiff's attorneys' fees, as requested; • \$18,280.57 to plaintiff's counsel for plaintiff's litigation costs, as requested; • \$4,000.00 to Plaintiff Faustino Sanchez Palacios as enhancement award, as requested; • \$8,000.00 to Simpluris, Inc., the settlement administrator, as requested; and • \$60,000.00 to the LWDA for its share of PAGA penalties, as requested. The total amount that will be payable to all class members and aggrieved employees, if they are paid the amount to which they are entitled pursuant to the judgment, is \$505,749.23. The Final Accounting hearing is set for June 21, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.

6	30-2021-01192697 Hernandez vs. Amazon.com Services, LLC	Plaintiff Guillermo Hernandez’s (“Plaintiff”) Motion for Final Approval of Class Action and PAGA Settlement and Plaintiff’s Motion for Attorneys’ Fees, Costs, and Incentive Award are GRANTED IN PART. The court finds that an enhancement award of \$5,000 is sufficient and proper for a class and settlement of this size and based on plaintiff’s contribution to the case. The court concludes that the \$295,000.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$88,500.00 to plaintiff’s counsel for plaintiff’s attorneys’ fees, as requested; • \$13,220.45 to plaintiff’s counsel for plaintiff’s litigation costs, as requested; • \$5,000.00 to Plaintiff Guillermo Hernandez as enhancement award, reduced from the \$10,000.00 requested; • \$15,000.00 to Rust Consulting, the settlement administrator, as requested; and • \$15,000.00 to the LWDA for its share of PAGA penalties, as requested. The total amount that will be payable to all class members and aggrieved employees, if they are paid the amount to which they are entitled pursuant to the judgment, is \$158,279.55. The Final Accounting hearing is set for June 21, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues. Within five (5) days of this ruling, Plaintiff shall provide the court with a revised Proposed Final Order and Judgment reflecting this ruling. Plaintiff is ordered to give notice of this ruling.
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7	30-2025-01450762 Machado vs. CR&R Incorporated	The tentative ruling is to continue the hearing on Plaintiff Eric Machado’s (“Plaintiff”) Motion for Final Approval of Class Action Settlement to December 21, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be re-read) at least 16 days before the next hearing date. There is no explanation for the change in the number of class members to 12,467, when the number was estimated to be 13,014 at the preliminary approval stage. There is no explanation as to why 12,467 class members were identified, but only 10,004 postcards were mailed out. No average payment is provided for individual recovery under the class settlement. The [Proposed] Order and Judgment must be amended to identify the putative class members who opted out and thus will not be bound by the judgment. The [Proposed] Order and Judgment must also provide how the parties will comply with CRC Rule 3.771(b), which states: “Notice of the judgment must be given to the class in the manner specified by the court.” The notice may be included with the checks that are mailed to the class members or posted on the administrator’s website. Plaintiff has not submitted his attorneys’ bills or a detailed hourly breakdown of his attorneys’ hours to support the court’s review of plaintiff’s attorneys’ fees request. Plaintiff is required to provide sufficient information to support the court’s lodestar cross-check of the fee request. Plaintiff has also failed to submit any documentation to support the attorney costs request so that the court can evaluate the reasonableness of the costs. There is no declaration from Plaintiff supporting his request for an enhancement award of \$3,000.00. The Administrator’s declaration is dated July 20, 2026 which is before the August 8, 2026 deadline for responses to the Class Notice. An updated declaration with full information after all deadlines have passed is required.
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		An invoice from the Administrator is required to support the \$26,000 Administrator fee request. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
9	30-2025-01522423 Macia vs. Quadient, Inc.	Plaintiff Rocio Macia's ("Plaintiff") Motion to Compel Further Responses from Defendant Quadient, Inc. ("Defendant") to Form Interrogatories-Employment Law (Set One) and Plaintiff's Motion to Compel Further Responses from Defendant to Form Interrogatories-General (Set One) are GRANTED IN PART AND DENIED IN PART. IT IS ORDERED THAT within twenty (20) days of this ruling, Defendant shall provide complete, code-compliant further responses to Form Interrogatories-General (Set One) Nos. 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, and Form Interrogatories-Employment (Set One) No. 215.1, based on Plaintiff's clarified definition of the term "INCIDENT" as used in these form interrogatories. As a threshold matter, Defendant argues that Plaintiff failed to adequately meet and confer. However, Plaintiff's counsel sent a meet-and-confer letter to Defendant on May 28, 2026 outlining the discovery disputes, and Defendant's counsel admits to failing to respond in time prior to the deadline for Plaintiff to file these motions. The court finds that Plaintiff has satisfied the pre-filing meet-and-confer requirements for these motions. <u>General Form Interrogatories</u> Form Interrogatory No. 4.1 asks for information regarding Defendant's relevant insurance policies. Defendant responded: Objection: This interrogatory is vague and ambiguous with respect to the term "incident". Subject to and without waving the foregoing objection, Responding Party responds as follows: Yes. (a) Employment Practices Liability Insurance; (b) RSUI Indemnity Corp., 945 E. Paces Ferry Rd. Suite 1800, Atlanta, GA; (c) Quadient Holdings USA, Inc., who may be contacted through their attorneys of record; (d) EP708876; (e) \$2,000,000 (f) No; (g) Quadient Holdings USA, Inc., who may be contacted through their attorneys of record. While Defendant did assert an objection, this was a valid objection as evidenced by the fact that Plaintiff had to clarify the definition of "incident" in his meet-and-confer letter. Plaintiff clarified that "INCIDENT" means and includes the retaliation

	taken against Plaintiff Rocio Macia because she reported the posting of a job outside the company, and her exemption misclassification, together with all facts and circumstances surrounding that retaliation and that misclassification, including the acts, omissions, communications, decisions, and events occurring immediately before and after them.” Further, Defendant substantively responded to this Form Interrogatory. No further response is required. Form Interrogatory No. 8.1 asks “Do you attribute any loss of income or earning capacity to the INCIDENT?” Defendant responded: “Objection. This interrogatory is vague and ambiguous with respect to the term “incident”. Further, this interrogatory is unintelligible such that Responding Party cannot respond. Responding Party is a corporate entity and not a natural person to whom this interrogatory is properly directed. Moreover, Responding Party has made no claims for loss of income or earning capacity.” In essence, Defendant’s answer is “No” and the court finds that no further response required. Form Interrogatory No. 9.1 asks whether Defendant attributes any damages to the subject incident. Defendant responded: “Objection: This interrogatory is vague and ambiguous with respect to the term “incident”. Subject to and without waving the foregoing objection, Responding Party responds as follows: not applicable as Responding Party has made no claim for damages in this action.” As with Form Interrogatory No. 8.1, this response is essentially a “No,” and no further response is required. Form Interrogatory No. 12.1 asks for relevant witness information. Defendant responds: “Objection: This request is vague, ambiguous and overbroad with respect to the term “INCIDENT.” This request also calls for speculation as to what “INCIDENT” is being referred to. Accordingly, and as phrased, Defendant is unable to respond to this request.” While Plaintiff should have clarified the definition of the term “INCIDENT” in the initial discovery requests, in the interests of judicial efficiency, the court finds that a further response from Defendant is required based on Plaintiff’s clarified definition. Form Interrogatory No. 12.2 and 12.3 asks for witness information as to any interviews concerning the incident. Defendant responded: “Objection: This request is vague, ambiguous and overbroad with respect to the term “INCIDENT.” This request also calls for speculation as to what “INCIDENT” is being referred to. This request seeks information protected from
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	disclosure by the attorney-client privilege and work product doctrine. (See <i>Nacht & Lewis Architects, Inc. v. Superior Court</i> (1996) 47 Cal.App.4th 214.)” As with Form Interrogatory No. 12.1, in the interests of judicial efficiency, the court finds that a further response from Defendant is required as to Form Interrogatory Nos. 12.2 and 12.3 based on Plaintiff’s clarified definition of the term “INCIDENT.” To the extent Defendant withholds any responsive information based on attorney-client privilege, Defendant must provide grounds for asserting that information. The court notes that “the attorney-client privilege only protects disclosure of <i>communications</i> between the attorney and the client; it does not protect disclosure of underlying facts which may be referenced within a qualifying communication.” (<i>State Farm Fire & Cas. Co. v. Superior Ct.</i> (1997) 54 Cal. App. 4th 625, 639.) “Nor does the attorney-client privilege protect independent facts related to a communication; that a communication took place, and the time, date and participants in the communication.” (<i>Id.</i> at 640.) Form Interrogatory Nos. 12.4 and 12.5 seek photographs, films or videotapes, diagram, reproduction, or model relevant to the incident. Defendant responded to both: “Objection: This interrogatory is vague, ambiguous and overbroad with respect to the term “INCIDENT.” This interrogatory also calls for speculation as to what “INCIDENT” is being referred to. Accordingly, and as phrased, Responding Party is unable to respond to this interrogatory. Without waiving said objections Responding Party responds as follows: No.” As with Form Interrogatory No. 12.1, in the interests of judicial efficiency, the court finds that a further response from Defendant is required as to Form Interrogatory Nos. 12.4 and 12.5 based on Plaintiff’s clarified definition of the term “INCIDENT.” Form Interrogatory No. 12.6, 12.7 and 13.1 ask about any reports or inspections or surveillance regarding the subject incident. Defendant responded to both: “Objection: This interrogatory is vague, ambiguous and overbroad with respect to the term “INCIDENT.” This interrogatory also calls for speculation as to what “INCIDENT” is being referred to. Accordingly, and as phrased, Responding Party is unable to respond to this interrogatory.” As with Form Interrogatory No. 12.1, in the interests of judicial efficiency, the court finds that a further response from Defendant is required as to Form Interrogatory Nos. 12.6, 12.7 and 13.1 based on Plaintiff’s clarified definition of the term “INCIDENT.”
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		The court declines to make a ruling as to Form Interrogatory No. 15.1 as it was not included in Plaintiff’s separate statement, and thus the court has no basis for making any ruling as to this discovery request. <u>Employment Form Interrogatories</u> Form Interrogatory No. 201.3(d) asks Defendant to identify any other adverse employment actions and requests Defendant to identify documents relied upon in making the other adverse employment actions. Defendant responded: “Objection: This interrogatory is vague, ambiguous, and overbroad. Subject to and without waving the foregoing objection, Responding Party responds as follows: Yes.” As for documents, Defendant answered: “The April 16, 2024 Warning provided to Plaintiff, as well as Defendant’s internal investigation documents.” The court finds that Defendant’s discovery response is adequate and no further response is required. Should Plaintiff seek further details regarding the specific documents, such information may be obtained through document production requests. Form Interrogatory No. 207.1 asks about internal written policies regarding how an employee can make a complaint similar to the complaints in this lawsuit. Defendant responded: “Objection: This interrogatory is vague and ambiguous as to the term “complaint of the type that is the subject matter of this lawsuit.”. Subject to and without waiving this objections Responding Party responds as follows: Responding Party has no [sic] any internal written policy or regulation governing how former employees are to make complaints about the termination of their employment.” The court finds that this response is adequate and no further response is required. The court declines to make a ruling as to Form Interrogatory No. 209.2 as it was not included in Plaintiff’s separate statement, and thus the court has no basis for making any ruling as to this discovery request. Form Interrogatory No. 215.1 asks for contact information for witnesses who were interviewed regarding the adverse employment action. Defendant responded: “Objection: This interrogatory is vague, ambiguous, and overbroad. Further, this interrogatory seeks attorney work product in violation of Code of Civil Procedure sections 2018.020 and 2018.030. (See Nacht & Lewis Architects v. Superior Court (1996) 47 Cal.App.4th 214.)
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		This interrogatory seeks information subject to the attorney-client privilege which is broadly construed, and extends to “factual information” and “legal advice.” (See <i>Mitchell v. Superior Court</i> (1984) 37 Cal.3d 591, 601.) Moreover, this interrogatory seeks information that is not reasonably calculated to lead to the discovery of admissible evidence. (Code of Civ. Proc., § 2017.010.)” As with Form Interrogatory No. 12.1, in the interests of judicial efficiency, the court finds that a further response from Defendant is required as to Form Interrogatory No. 215.1 based on Plaintiff’s clarified definition of the term “INCIDENT.” The court also notes the limits of attorney-client privilege as discussed above. <u>Monetary Sanctions</u> The court DENIES both Plaintiff’s requests for monetary sanctions and Defendant’s requests for monetary sanctions, as both parties share fault in the discovery disputes and both have raised meritorious arguments. Plaintiff is ordered to give notice of this ruling to Defendant.
10	30-2026-01555557 Hernandez vs. Bellflower Skilled, LLC	<u>MOTION 1</u> Plaintiff Maria Elena Hernandez’s (“Plaintiff”) Motion to Compel Further Responses from Defendant Sun Mar Management Services (“Sun Mar”) to Request for Identification and Production of Documents (“RFP”), Set One is DENIED. “[A] civil litigant’s right to discovery is broad.” (<i>Yelp Inc. v. Superior Court</i> (2017) 17 Cal. App. 5th 1, 15.) “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (CCP § 2017.010.) However, courts are also mindful of the “abuse of the discovery system,” and “misuses to which the discovery statutes are prone absent judicial consideration for the great burdens which may be imposed on parties and nonparties alike.” (<i>Calcor Space Facility, Inc. v. Superior Ct.</i> (1997) 53 Cal. App. 4th 216, 221.) “Courts must insist discovery devices be used as tools to facilitate litigation rather than as weapons to wage litigation.” (<i>Id.</i>) “These tools should be well calibrated; the lancet is to be preferred over the sledge hammer.” (<i>Id.</i>) “Because of the potential for promiscuous discovery imposing great burdens, even

		though ultimately the probative value of the discovered material may be questionable, trial judges must carefully weigh the cost, time, expense and disruption of normal business resulting from an order compelling the discovery against the probative value of the material which might be disclosed if the discovery is ordered.” (<i>Id.</i> at 223.) “Although the scope of civil discovery is broad, it is not limitless.” (<i>Id.</i>) “The motion [for an order compelling a further response] shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (CCP § 2031.310(b)(1).) At issue in this Motion are the following RFPs: • RFP No. 2: All DOCUMENTS which were provided to YOU by any named defendant in this action, or anyone acting on their behalf, which references, in whatsoever manner, the staffing levels of DIRECT CAREGIVERS in the FACILITY during the time period of February 19, 2022, through February 19, 2026. • RFP No. 3: All DOCUMENTS which were provided by YOU to any named defendant in this action, or anyone acting on their behalf, which references, in whatsoever manner, the staffing levels of DIRECT CAREGIVERS in the FACILITY during the time period of February 19, 2022, through February 19, 2026. • RFP No. 4: All DOCUMENTS which were provided to YOU by any named defendant in this action, or anyone acting on their behalf, which references, in whatsoever manner, the census in the FACILITY during the time period of February 19, 2022, through February 19, 2026. • RFP No. 5: All DOCUMENTS which were provided by YOU to any named defendant in this action, or anyone acting on their behalf, which references, in whatsoever manner, the census in the FACILITY during the time period of February 19, 2022, through February 19, 2026. • RFP No. 6: All DOCUMENTS which were provided to YOU by any named defendant in this action, or anyone acting on their behalf, relating to interaction with the Department of Public Health and the FACILITY during the time period of February 19, 2022, through February 19, 2026 as it relates to the FACILITY staffing of DIRECT CAREGIVERS. • RFP No. 7: All DOCUMENTS which were provided by YOU to any named defendant in this action, or anyone acting on their behalf, relating to interaction with the Department of Public Health and the FACILITY during the time period of February 19, 2022, through February
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		19, 2026 as it relates to the FACILITY staffing of DIRECT CAREGIVERS. These RFPs seek any and all documents exchanged between defendants concerning the subject facility’s staffing levels, any census of the facility between the specified time periods, and any interactions between the facility and the Department of Public Health. Plaintiff argues that this discovery is necessary and relevant to establish alter ego liability between the Defendants in this action. However, it is clear from the face of these document requests that they are not aimed to uncover any alter ego evidence, but concern entirely different subject matters. Plaintiff fails to articulate how staffing levels, a census, or interactions with the Department of Public Health have anything to do with the factors that establish alter ego liability. The court finds that Plaintiff has failed to show good cause for compelling further responses to the overly broad document requests that are the subject of this Motion. Accordingly, the Motion is denied, as is Plaintiff’s request for monetary sanctions. Moving party is ordered to give notice of this ruling. <u>MOTION 2</u> Plaintiff’s Motion to Compel Further Responses from Sun Mar to Form Interrogatories, Set One is DENIED as MOOT. After this Motion was filed, on July 14, 2026, Sun Mar served supplemental responses to Plaintiff’s Form Interrogatories Set One, which amended Sun Mar’s response to Form Interrogatory No. 4.1, 50.3, 50.4 and 50.5. Form Interrogatory No. 4.1 asks for information regarding any relevant insurance policies. Initially, Sun Mar only identified Bellflower Skilled, LLC as an insured party, and Plaintiff asserted that there were additional insureds under the relevant policies. In its supplemental response, Sun Mar now identifies Sun Mar Management Services, 3050 Saturn Street, Brea, CA 92821; Sun Meridian Management Services, 3050 Saturn Street, Brea, CA 92821; and Bellflower Skilled, LLC, 16910 Woodruff Ave, Bellflower, CA 90706 as the entities covered by the insurance policy at issue related to this case. As Plaintiff only sought a further response as to No. 4.1 to show whether or not the other Defendants are adequately insured, the court finds that Sun Mar’s supplemental response is adequate.
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		The remaining Form Interrogatories asked Sun Mar to state whether it asserted that any performance under the agreements in the action was excused (50.3), and whether any agreements were terminated (50.4) or unenforceable (50.5). Sun Mar initially answered “yes” to each of these Form Interrogatories, but has now amended its answers to be “no” to each. Therefore, no further response is necessary. Based on the foregoing, this Motion is denied as moot, and Plaintiff’s request for monetary sanctions is denied. Moving party is ordered to give notice of this ruling. <u>MOTION 3</u> Plaintiff’s Motion to Compel Further Responses from Defendant Bellflower Skilled, LLC (“Bellflower”) to RFP, Set One is GRANTED IN PART as to RFP Nos. 5-10, 16-17 and 20, and DENIED IN PART as to RFP Nos. 21-22. IT IS ORDERED THAT, within thirty (30) days of this ruling, Bellflower shall provide Plaintiff with complete, code-compliant, further responses to RFP Nos. 5-10, 16-17 and 20, that identifies documents responsive to each request and provides sufficient explanation in accordance with the Code of Civil Procedure as to any documents that have been lost or destroyed. IT IS FURTHER ORDERED THAT within fourteen (14) days of this ruling, the parties shall meet and confer to create a protective order with respect to any confidential information that may be subject to discovery. IT IS FURTHER ORDERED THAT Bellflower shall produce to Plaintiff any responsive documents to RFP Nos. 5-10, 16-17 and 20, within fifty (50) days of this ruling. The parties may extend this time period for up to twenty (20) additional days by mutual agreement confirmed in writing. RFP No. 5 states: Please provide all completed CMS 672 of the FACILITY encompassing any portion for the time period of February 19, 2022, through February 19, 2026. Plaintiff contends that no CMS 672 forms have been produced by Bellflower. Bellflower shall identify and produce any responsive documents. To the extent any responsive documents are lost or destroyed, Bellflower “shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand.”
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	(CCP § 2031.230.) “This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party.” (<i>Id.</i>) “The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (<i>Id.</i>) RFP No. 6 states: Please provide all completed Roster/Sample Matrix “802 Forms” of the FACILITY encompassing any portion for the time period of February 19, 2022, through February 19, 2026. Bellflower contends that it has produced documents responsive to this request. However, Bellflower must amend its response to identify the responsive documents. To the extent any responsive documents are lost or destroyed, Bellflower shall comply with the above requirements pursuant to CCP § 2031.230. RFP No. 7 states: Please provide all completed FACILITY CASPER “Quality Measure” reports encompassing any portion for the time period of February 19, 2022, through February 19, 2026. RFP No. 8 states: Please provide the Resident Utilization Group score for each resident of the FACILITY and for each date of the resident’s stay, encompassing any portion for the time period of February 19, 2022, through February 19, 2026. RFP No. 9 states: Please provide the FACILITY HIPPS billing codes for each resident of the FACILITY and for each date of the resident’s stay, encompassing any portion for the time period of February 19, 2022, through February 19, 2026. Bellflower claims that producing documents responsive to RFP Nos. 7, 8 and 9, would disclose protected health information, but Plaintiff argues that these documents either do not identify the resident patients or any identifying information may be redacted. Bellflower shall provide further responses to these RFPs, identify and produce any responsive documents to these requests, redacting any patient-identifying information to the extent it exists. RFP No. 10 states: Please provide all assignment sheets and/or schedules during the time period of February 19, 2022, through February 19, 2026 for DIRECT CAREGIVERS in the
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	FACILITY during the time period of February 19, 2022, through February 19, 2026. RFP No. 16 states: Please provide all completed California Department of Health “530 Forms” of the FACILITY encompassing any portion for the time period of February 19, 2022, through February 19, 2026. RFP No. 17: Please provide all completed California Department of Health “612 Forms” of the FACILITY encompassing any portion for the time period of February 19, 2022, through February 19, 2026. Bellflower contends that it has produced documents responsive to RFP Nos. 10, 16 and 17. However, Bellflower must amend its responses to identify the responsive documents. To the extent any responsive documents are lost or destroyed, Bellflower shall comply with the above requirements pursuant to CCP § 2031.230. RFP No. 20 states: Please provide all DOCUMENTS evidencing and/or consisting of all agreements between the responding party and any named Defendant in this action relating to the operations of the FACILITY that was in effect during any portion of February 19, 2022, through February 19, 2026. Bellflower argues that any documents produced responsive to this request contain confidential business information, and should be subject to a protective order. As stated above, the court orders the parties to meet and confer to create a protective order with respect to confidential information produced in this action, and then any responsive documents to this RFP shall be produced subject to that protective order. Bellflower must also amend its responses to identify the responsive documents. To the extent any responsive documents are lost or destroyed, Bellflower shall comply with the above requirements pursuant to CCP § 2031.230. RFP No. 21 states: Please provide all DOCUMENTS exchanged between YOU and any named defendant in this action, or anyone acting on their behalf, during the time period of February 19, 2022, through February 19, 2026 which references, in whatsoever manner, the staffing of DIRECT CAREGIVERS in the FACILITY. As the court stated in its July 20, 2026 (ROA 111) Minute Order concerning a similar discovery request, the request is overbroad as it seeks all documents exchanged by Defendants that reference in any manner the staffing at the facility. Plaintiff is only entitled to documents that are relevant or
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		are reasonably calculated to lead to the discovery of relevant evidence regarding the alleged understaffing at the subject facility. (<i>Terminals Equip. Co. v. City & Cnty. of San Francisco</i> (1990) 221 Cal. App. 3d 234, 247 [“A party seeking discovery must identify a “particularized need for the documents at issue . . . or [] show how they would be relevant to the complaint or calculated to lead to the discovery of relevant evidence.”].) Accordingly, the Motion is denied as to RFP No. 21. RFP No. 22 states: Please provide all DOCUMENTS exchanged between YOU and any named defendant in this action, or anyone acting on their behalf, during the time period of February 19, 2022, through February 19, 2026 which references, in whatsoever manner, the census in the FACILITY. Similar to RFP No. 21, this discovery request is overbroad as it seeks all documents exchanged by Defendants that reference in any manner the census at the facility. Plaintiff could simply request the census itself should there be a need for the census data for the facility. Thus, the Motion is also denied as to RFP No. 22. Plaintiff’s request for monetary sanctions is DENIED. Moving party is ordered to give notice of this ruling.
11	30-2026-01558254 Santillan vs. Mil-Spec Heat Treating Inc.	Defendant Co-Advantage Resources, Inc.’s (“CARI”) Demurrer to Plaintiff Ruben Santillan’s (“Plaintiff”) First Amended Complaint (“FAC”) is OVERRULED. IT IS ORDERED THAT, within fourteen (14) days of this ruling, CARI shall file and serve an Answer to Plaintiff’s FAC. As a threshold matter, Plaintiff argues that the demurrer is untimely as it was not filed within thirty days of CARI being served with the FAC. (CCP § 430.40(a) [“A person against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint.”].) CARI filed the instant Demurrer on August 19, 2026, which is 103 days after it was served with the FAC. Whether to consider an untimely demurrer is within the court’s discretion. (<i>McAllister v. Cnty. of Monterey</i> (2007) 147 Cal. App. 4th 253, 281–82 [“There is no absolute right to have a pleading stricken for lack of timeliness in filing where no question of jurisdiction is involved, and where, as here, the late filing was a mere irregularity [citation]; the granting or denial of the motion is a matter which lies within the discretion of the court.”].) In the interests of judicial efficiency, the court

		exercises its discretion to consider the untimely demurrer on its merits as there was no prejudice to Plaintiff by the delay (costs for simply opposing the demurrer does not constitute prejudice) and Plaintiff was able to substantively oppose the demurrer. CARI demurs to the FAC on the grounds that the FAC purportedly fails to allege sufficient facts against CARI specifically to show its liability for the wage and hour claims asserted against it. CARI contends that there are insufficient allegations to show its liability as a joint employer with, or alter ego of, Defendant Mil-Spec Heat Treating Inc. (“MSHTI”). CARI also objects to the FAC as uncertain because Plaintiff’s allegations are asserted against Defendants collectively, rather than identifying each Defendant’s specific conduct with respect to each claim. As relevant to CARI, Plaintiff alleges the following in the FAC: • Plaintiff is informed and believes and based thereon alleges that CO-ADVANTAGE is a privately-held corporation that is also a labor contractor within the meaning of Labor Code section 2810.3 that provides workers to MIL-SPEC for the purpose of performing work for MIL-SPEC, whether directly hired by MIL-SPEC, working under the heading of a professional employer organization, or placed to work at MIL-SPEC locations in California by CO-ADVANTAGE. At all relevant times herein, defendant CO-ADVANTAGE employed Plaintiff and similarly situated employees within the State of California. (FAC ¶ 4 [emphasis added].) • Plaintiff is informed and believes, and based thereon alleges, that each defendant acted in all respects pertinent to this action, as the agent of the other defendant(s), carried out a joint scheme, business plan or policy in all respects pertinent hereto, and the acts of each defendant are legally attributable to the other defendants. Whenever, heretofore or hereinafter, reference is made to “Defendant”, it shall include MIL-SPEC, CO-ADVANTAGE, and any of their parents, subsidiaries, or affiliated companies within the State of California, as well as DOES 1 through 100 identified herein. (FAC ¶ 6.) • Plaintiff is informed and believes, and based thereon alleges, that at all times mentioned herein, each of the Defendants was the agent, principal, employee, employer, representative, joint venture or co-conspirator of each of the other defendants, either actually or ostensibly, and in
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		doing the things alleged herein acted within the course and scope of such agency, employment, joint venture, and conspiracy. (FAC ¶ 7.) • All of the acts and conduct described herein of each and every corporate and limited liability company defendant was duly authorized, ordered, and directed by the respective and collective defendant corporate and limited liability company employers, and the owners, officers, directors, members and management-level employees of said corporate and limited liability company employers. In addition thereto, said corporate and limited liability company employers participated in the aforementioned acts and conduct of their said employees, agents, and representatives, and each of them; and upon completion of the aforesaid acts and conduct of said corporate and limited liability company employees, agents, and representatives, the defendant corporation and limited liability company respectively and collectively ratified, accepted the benefits of, condoned, lauded, acquiesced, authorized, and otherwise approved of each and all of the said acts and conduct of the aforementioned corporate and limited liability company employees, agents and representatives. (FAC ¶ 8.) • Plaintiff is informed and believes, and based thereon allege, that there exists such a unity of interest and ownership between Defendants, and each of them, that their individuality and separateness have ceased to exist. (FAC ¶ 9.) • The Alter Ego Defendants are completely dominated and controlled by the Individual Defendants who personally committed the wrongful and illegal acts and violated the laws as set forth in this Complaint, and who has hidden and currently hide behind the Alter Ego Defendants to perpetrate frauds, circumvent statutes, or accomplish some other wrongful or inequitable purpose[.] (FAC ¶ 10(A).) • The Individual Defendants derive actual and significant monetary benefits by and through the Alter Ego Defendants' unlawful conduct, and by using the Alter Ego Defendants as the funding source for the Individual Defendants' own personal expenditures[.] (FAC ¶ 10(B).) • Plaintiff is informed and believes and thereon alleges that the Individual Defendants and the Alter Ego Defendants, while really one and the same, were segregated to appear as though separate and distinct for purposes of perpetrating a fraud, circumventing a statute, or
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		accomplishing some other wrongful or inequitable purpose[.] (FAC ¶ 10(C).) • Plaintiff is informed and believes and thereon alleges that the business affairs of the Individual Defendants and the Alter Ego Defendants are, and at all relevant times mentioned herein were, so mixed and intermingled that the same cannot reasonably be segregated, and the same are inextricable confusion. The Alter Ego Defendants are, and at all relevant times mentioned herein were, used by the Individual Defendants as mere shells and conduits for the conduct of certain of their, and each of their affairs. The Alter Ego Defendants are, and at all relevant times mentioned herein were, the alter egos of the Individual Defendants[.] (FAC ¶ 10(D).) • The recognition of the separate existence of the Individual Defendants and the Alter Ego Defendants would promote injustice insofar that it would permit defendants to insulate themselves from liability to Plaintiff for violations of the Civil Code, Labor Code, and other statutory violations. The corporate existence of these defendants should thus be disregarded in equity and for the ends of justice because such disregard is necessary to avoid fraud and injustice to Plaintiff herein[.] (FAC ¶ 10(E).) • Accordingly, the Alter Ego Defendants constitute the alter ego of the Individual Defendants (and vice versa), and the fiction of their separate corporate existence must be disregarded[.] (FAC ¶ 10(F).) • As a result of the aforementioned facts, among others, Plaintiff is informed and believes, and based thereon alleges, that the Individual Defendants, the Alter Ego Defendants, and each of them, are joint employers by virtue of a joint enterprise, and that Plaintiff was an employee of the Alter Ego Defendants and the Individual Defendants. Plaintiff performed services for each and every defendant, and to the mutual benefit of all defendants, and all defendants shared control of Plaintiff, either directly or indirectly, and in the manner in which defendants’ business was and is conducted. (FAC ¶ 11 [emphasis added].) The court notes that Plaintiff alleges that CARI is a labor contractor, and under the Labor Code “[a] client employer shall share with a labor contractor all civil legal responsibility and civil liability for all workers supplied by that labor contractor . . .” (Cal. Lab. Code § 2810.3(b).) “A demurrer must dispose of an
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	entire cause of action to be sustained.” (<i>Fremont Indem. Co. v. Fremont Gen. Corp.</i> (2007) 148 Cal. App. 4th 97, 119.) CARI failed to address this theory of liability in its opening papers and provides no authority showing that Plaintiff’s allegations are inadequate under this theory of liability. The court finds that Plaintiff has adequately alleged ultimate facts to put CARI on notice as to the claims against it under theories of liability as a joint employer and/or alter ego of MSHTI, and/or as a labor contractor under the Labor Code. “Because one of the purposes of a complaint is to apprise the defendant of the basis on which the plaintiff seeks recovery, the complaint should set forth the ultimate facts constituting the cause of action and need not set forth the evidence by which the plaintiff proposes to prove those facts.” (<i>Prue v. Brady Co./San Diego, Inc.</i> (2015) 242 Cal. App. 4th 1367, 1376.) Ultimate fact “is a slippery term, but in general it refers to a core fact, such as an element of a claim or defense, without which the claim or defense must fail.” (<i>Yield Dynamics, Inc. v. TEA Sys. Corp.</i> (2007) 154 Cal. App. 4th 547, 559.) A complaint “is adequate so long as it appries the defendant of the factual basis for the claim.” (<i>Prue</i>, 242 Cal. App. 4th at 1376.) To the extent CARI disputes the facts alleged or dispute its liability for each of the alleged claims based on facts outside of the FAC, that is a challenge as to the merits of Plaintiff’s claims, not the adequacy of the pleadings. CARI cannot rely upon facts regarding its alleged business operations and services which are not judicially noticeable to attack the FAC. “A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (<i>Redfearn v. Trader Joe’s Co.</i> (2018) 20 Cal. App. 5th 989, 996.) The Court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (<i>Id.</i>) “Because the demurrer tests the pleading alone, and not the evidence or other extrinsic matters, it lies only where the defects appear on the face of the pleading.” (<i>S. Pac. Land Co. v. Westlake Farms, Inc.</i> (1987) 188 Cal. App. 3d 807, 817.) A party “cannot validly challenge the complaint based on facts that are not alleged in the complaint or judicially noticeable.” (<i>Hahn v. Mirda</i> (2007) 147 Cal. App. 4th 740, 747.) With respect to the alter ego and joint employment theories of liability, CARI’s demurrer relies primarily on cases that evaluated the employment relationship at the merits stage of litigation based on evidence concerning the employment relationship. Those cases are inapplicable at the demurrer stage.
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	The only relevant cases cited by CARI regarding adequacy of the pleadings are wholly distinguishable as those complaints either contained no alter ego allegations at all or alleged facts that made clear that there was no employment relationship between the defendant the plaintiff. (<i>Goonewardene v. ADP, LLC</i> (2016) 5 Cal. App. 5th 154, 166 [“[T]he claims fail for want of sufficient allegations establishing an employee-employer relationship between appellant and [payroll services provider] ADP.”]; <i>Leek v. Cooper</i> (2011) 194 Cal. App. 4th 399, 414 [affirming denial of leave to amend when there was no alter ego allegations in existing complaint and no evidence of any inequitable result under the alter ego theory of liability].) Unlike the cases cited by CARI, the FAC here alleges multiple facts concerning alter ego liability, and asserts that CARI was a joint employer of Plaintiff due to the alter ego allegations and alleged joint enterprise between the two named Defendants. The court also finds no merit to CARI’s contention that the allegations are uncertain because they are collectively asserted against all Defendants or because they rely upon alternative theories of liability. CARI also fails to identify why each cause of action is inadequately pled. Instead, CARI argues that the facts are not specific enough as to CARI and are, therefore, uncertain. “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal. App. 4th 612, 616.) “Where the exact nature of the facts is in doubt, or where the exact legal nature of plaintiff’s right and defendant’s liability depend on facts not well known to the plaintiff, the pleading may properly set forth alternative theories in varied and inconsistent counts.” (<i>Rader Co. v. Stone</i> (1986) 178 Cal. App. 3d 10, 29.) Plaintiff has alleged sufficient facts to assert that CARI is liable for each cause of action either as a labor contractor, a joint employer, and/or an alter ego of MSHTI. Any further clarification of facts may be obtained through discovery. Based on the foregoing, the court overrules CARI’s Demurrer to Plaintiff’s FAC. Defendant Co-Advantage Resources, Inc. is ordered to give notice of this ruling.
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